

1 AN ACT relating to the State Treasurer and unclaimed property.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 2 IS CREATED TO
4 READ AS FOLLOWS:

5 ***The fourth week of September of each year is designated as Unclaimed Property Week.***

6 ➔Section 2. KRS 41.020 is amended to read as follows:

7 The Department of the Treasury shall be headed by the State Treasurer. He **or she** shall
8 ~~reside and~~ keep his **or her** office at the seat of government.

9 ➔Section 3. KRS 393A.740 is amended to read as follows:

10 (1) If a holder enters into a contract or other arrangement for the purpose of evading an
11 obligation under this chapter or otherwise willfully fails to perform a duty imposed
12 on the holder under this chapter, the administrator may require the holder to pay the
13 administrator, in addition to interest as provided in KRS 393A.730, a civil penalty
14 of one thousand dollars (\$1,000) for each day the obligation is evaded or the duty is
15 not performed, up to a cumulative maximum amount of twenty-five thousand
16 dollars (\$25,000), plus twenty-five percent (25%) of the amount or value of
17 property that should have been but was not reported, paid, or delivered as a result of
18 the evasion or failure to perform.

19 (2) If a holder makes a fraudulent report **or files a report which fails to provide all**
20 **necessary information in their possession** under this chapter, the administrator
21 may require the holder to pay to the administrator, in addition to interest under KRS
22 393A.730, a civil penalty of one thousand dollars (\$1,000) for each day from the
23 date the report was made until corrected, up to a cumulative maximum of twenty-
24 five thousand dollars (\$25,000), plus twenty-five percent (25%) of the amount or
25 value of any property that should have been reported but was not included in the
26 report or was underreported.